



SPONSOR: Sen. Mantzavinos & Rep. Osienski
Sens. Huxtable, Pettyjohn, Poore, Townsend, Walsh;
Reps. Burns, Snyder-Hall

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 43

AN ACT TO AMEND TITLE 24 OF THE DELAWARE CODE RELATING TO THE BOARD OF PLUMBING,
HEATING, VENTILATION, AIR CONDITIONING, AND REFRIGERATION EXAMINERS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Amend Chapter 18, Title 24 of the Delaware Code by making deletions as shown by strike through and insertions
as shown by underline as follows and by redesignating accordingly:

§ 1802. Definitions.

The following words, terms, and phrases, when used in this chapter, have the meanings ascribed to them in this
section, except where the context clearly indicates a different meaning:

() "State HVACR License" means a license given by the Board to an individual to provide heating, ventilation,
and air conditioning services in Delaware.

() "State Plumbing License" means a license given by the Board to an individual to provide plumbing services in
Delaware.

§ 1807. License required; exemptions.

(d) The State Plumbing License issued by the Board must be recognized by any county, city, and municipality in
Delaware without reservations or additional requirements to do work in these jurisdictions.

~~(d)~~ (e) The penalty for a violation of this section is, for a first offense, a fine of not less than \$1,500 nor more than
\$3,000, and, for a second or subsequent offense, a fine of not less than \$3,000 nor more than \$6,000. The Justice of the
Peace ~~Courts~~ Court ~~shall have~~ has jurisdiction over violations of this section.

§ 1820. License required; exemptions.

(d) The State HVACR License issued by the Board must be recognized by any county, city, and municipality in
Delaware without reservations or additional requirements to do work in these jurisdictions.

~~(d)~~ (e) The penalty for a violation of this section is, for a first offense, a fine of not less than \$1,500 nor more than
\$3,000, and, for a second or subsequent offense, a fine of not less than \$3,000 nor more than \$6,000. The Justice of the
Peace ~~Courts~~ have Court has jurisdiction over violations of this section.

SYNOPSIS

This Act limits the ability to set professional standards and licensing requirements for plumbing or HVACR licensees to the Board of Plumbing, Heating, Ventilation, Air Conditioning, and Refrigeration Examiners. This Act requires a 2/3 vote requirement because it indirectly impacts a municipal charter.

Author: Senator Mantzavinos